

Food Safety and Standards Regulation 2(b) — Definition of Ayurveda Aahara

Title: Definition of Ayurveda Aahara

Jurisdiction: India

Category: Classification

Source Citation: Food Safety and Standards (Ayurveda Aahara) Regulations, 2022, Regulation 2(b)

Plain English Summary:

Ayurveda Aahara means food prepared according to the recipes, ingredients, or processes described in the authoritative Ayurveda books listed in Schedule A. This definition also specifies products that are excluded, such as Ayurvedic drugs, proprietary Ayurvedic medicines, cosmetics, certain substances listed under the Drugs and Cosmetics framework, metal-based Ayurvedic medicines, bhasma and pishti.

The Exact Legal Text:

(b) “Ayurveda Aahara” means a food prepared in accordance with the recipes or ingredients or processes as per method described in the authoritative books of Ayurveda listed under ‘Schedule A’ of these regulations including products which have other botanical ingredients in accordance with the concept of Ayurveda Aahara but does not include Ayurvedic drugs or proprietary Ayurvedic medicines and medicinal products, cosmetics, narcotic or psychotropic substances, herbs listed under Schedule E-1 of Drug and Cosmetics Act, 1940 and the Drug and Cosmetics Rules, 1945, metals based Ayurvedic drugs or medicines, bhasma or pishti and any other ingredients notified by the Authority from time to time.

Keywords/Triggers:

Ayurveda Aahara, Ayurveda food classification, Ayurvedic drug vs food, proprietary Ayurvedic medicine, Schedule E-1 herbs, bhasma, pishti, Ayurveda Aahara definition

Regulation 3(1) — General Requirements

Title: General Requirements for Ayurveda Aahara

Jurisdiction: India

Category: Classification

Source Citation: Food Safety and Standards (Ayurveda Aahara) Regulations, 2022, Regulation 3(1)

Plain English Summary:

Food Business Operators must formulate Ayurveda Aahara according to the categories and requirements specified in Schedule B. Therefore, Schedule B is the basis for determining the regulatory category of an Ayurveda Aahara product.

The Exact Legal Text:

3. General requirements.- (1) Food Business Operators shall formulate Ayurveda Aahara in accordance with the categories and requirements specified in Schedule B of these regulations.

Keywords/Triggers:

Ayurveda Aahara requirements, Schedule B, Ayurveda Aahara category, food formulation requirements, FBO Ayurveda Aahara, product classification

Regulation 7 — Restriction on Sale, Manufacture, etc.

Title: Restriction on Sale, Manufacture, etc. of Ayurveda Aahara

Jurisdiction: India

Category: Classification

Source Citation: Food Safety and Standards (Ayurveda Aahara) Regulations, 2022, Regulation 7

Plain English Summary:

A person cannot manufacture, pack, sell, market, distribute, or import Ayurveda Aahara unless the product complies with the requirements of these regulations. This provides a basic regulatory compliance requirement for Ayurveda Aahara products.

The Exact Legal Text:

7. Restriction on sale, manufacture, etc. of Aurveda Ahara.- No person shall manufacture, pack, sell, offer for sale, market or otherwise distribute or import Ayurveda Aahara unless the product complies with the requirements laid down in these regulations.

Keywords/Triggers:

Ayurveda Aahara sale, manufacture Ayurveda Aahara, import Ayurveda food, market Ayurveda Aahara, regulatory compliance, FBO compliance, Ayurveda Aahara requirements

Regulation 8 — Not to Claim Treating Human Disease

Title: Prohibition on Claims of Treating Human Disease

Jurisdiction: India

Category: Advertising

Source Citation: Food Safety and Standards (Ayurveda Aahara) Regulations, 2022, Regulation 8

Plain English Summary:

The labelling, presentation and advertisement of Ayurveda Aahara cannot claim that the product prevents, treats or cures a human disease. This is important when checking whether a product's proposed marketing or advertising claim is permitted.

The Exact Legal Text:

8. Not to claim treating human disease, etc. .- The labelling, presentation and advertisement shall not claim that the Ayurveda Aahara has the property of preventing, treating or curing a human disease or refer to such properties.

Keywords/Triggers:

Ayurveda Aahara disease claim, treatment claim, cure claim, disease prevention claim, Ayurveda food advertising, prohibited health claim, product labelling claim

Regulation 9(2) — Health Claims and Disease Risk Reduction Claims

Title: Health Claims and Disease Risk Reduction Claims

Jurisdiction: India

Category: Advertising

Source Citation: Food Safety and Standards (Ayurveda Aahara) Regulations, 2022, Regulation 9(2)

Plain English Summary:

Health claims and disease risk reduction claims for different categories of Ayurveda Aahara must follow the requirements specified in Schedule B. The approval process therefore depends on the category of the Ayurveda Aahara product.

The Exact Legal Text:

(2) Health claims and Disease risk reduction claims for the different categories of Ayurveda Aahara and their approval process shall be in accordance with the requirements specified in Schedule B of these regulations.

Keywords/Triggers:

Ayurveda Aahara health claim, disease risk reduction claim, Schedule B claims, health claim approval, Ayurveda food claims, claim approval process

Regulation 10 — Prior Approval for Ayurveda Aahara

Title: Prior Approval for Ayurveda Aahara

Jurisdiction: India

Category: Classification

Source Citation: Food Safety and Standards (Ayurveda Aahara) Regulations, 2022, Regulation 10

Plain English Summary:

If an Ayurveda Aahara product requires prior approval under Schedule B, that approval must follow the Food Safety and Standards (Approval for Non-Specific Food and Food Ingredients) Regulation, 2017. This is important for determining whether a proposed product requires regulatory approval before manufacture or marketing.

The Exact Legal Text:

10. Prior approval for Ayurveda Aahara .- If Ayurveda Aahara need prior approval as per Schedule B of these regulations, the same shall be in accordance with the Food Safety and Standards (Approval for Non-Specific Food and Food Ingredients) Regulation, 2017.

Keywords/Triggers:

Ayurveda Aahara prior approval, Schedule B approval, product approval, non-specific food approval, FSSAI approval, Ayurveda food regulatory approval

Schedule A — Authoritative Books

Title: List of Authoritative Books for Ayurveda Aahara

Jurisdiction: India

Category: Classification

Source Citation: Food Safety and Standards (Ayurveda Aahara) Regulations, 2022, Schedule A [See regulation 2(b)]

Plain English Summary:

Schedule A contains the authoritative Ayurveda books used for determining whether recipes, ingredients and processes can qualify under Ayurveda Aahara. This list is important for the AI assistant when checking whether a formulation is based on an authoritative Ayurveda source.

The Exact Legal Text:

Schedule A

[See regulation 2(b)]

List of authoritative books* for Ayurveda Aahara

Sl. No. Books

1. Abhinava Chintamani
2. Arka Prakasha
3. Arogya Kalpadruma
4. Arya Bishak
5. Ashtanga Hridaya
6. Ashtanga Samgraha
7. Ayurveda Chintamani
8. Ayurveda Kalpadruma
9. Ayurveda Prakasha
10. Ayurveda Ratnakara
11. Ayurveda Samgraha
12. Bangasena
13. Ayurvedic Formulary of India
14. Ayurveda Sara Samgraha
15. Ayurvedic Pharmacopeia of India
16. Bhaishajya Ratnavali
17. Bhava Prakash
18. Bhela Samhita
19. Bhojana Kutuhalam
20. Brihat Bhaishajya Ratnakar
21. Brihat Nighantu Ratnakar
22. Chakra Datta
23. Charak Samhita
24. Dravyaguna Nighantu
25. Gada Nigraha
26. Harame khala
27. Kaideva Nighantu
28. Kashyapa Samhita
29. Ksemakutuhalam
30. Kupi Pakva Rasayana
31. Madanpala Nighantu
32. Manasollasa / Abhilashitarah Chintamani
33. Nighantu Ratnakar
34. Paka Darpana of Nala
35. Pathya Apathya Vinishchaya
36. Raja Nighantu
37. Rasa Chandanshu
38. Rasa Pradipika
39. Rasa Raja Sundara
40. Rasa Ratna Samuchchaya
41. Rasa Tantra Sara va Siddha Prayaoga Sangraha - Part 1
42. Rasa Tarangini
43. Rasa Yoga Ratnakar
44. Rasa Yoga Sagara
45. Rasa Yoga Samgraha
46. Rasamanjiri
47. Rasamrita

48. Rasendra Sara Samgraha
49. Ruchivadhu Gala Ratnamala
50. Sahasrayoga
51. Sarvaroga Chikitsa Ratnam
52. Sarvayoga Chikitsa Ratnam
53. Sharangdhara Samhita
54. Shodhala Nighantu
55. Siddha Bhaishajya Manimala
56. Siddha Yoga Samgraha
57. Siva Tatva Ratnakara II
58. Soopa Shastra of Mangarasa III
59. Susena Nighantu/Ayurveda Mahodadhi
60. Sushruta Samhita
61. Vaidya Chintamani
62. Vaidyaka Chikitsa Sara
63. Vaidyaka Shabda Sindhu
64. Vasava Rajeeyam
65. Vidya Jiwan
66. Vishwanath Chikitsa
67. Vrinda Chikitsa
68. Yoga Chintamani
69. Yoga Ratnakara
70. Yoga Tarangini
71. Yogaratna Samgraha

*Note 1.- Ingredients and recipes listed in the above editions of authoritative books and those authoritative texts published before 1940 shall be considered by the Food Authority for approval as Ayurveda Aahara.

Note 2.- Ingredients and recipes listed in Appendix or Annexure to the above authoritative texts in Schedule A shall not be considered by the Food Authority for approvals Ayurveda Aahara.

Keywords/Triggers:

Schedule A Ayurveda, authoritative Ayurveda books, Ayurvedic Formulary of India, Ayurvedic Pharmacopeia of India, classical Ayurveda text, Ayurveda Aahara source, authoritative formulation, Ayurveda recipe reference

Schedule B — Categories A, B, B1 and B2

Title: Categories of Ayurveda Aahara and Regulatory Requirements

Jurisdiction: India

Category: Classification

Source Citation: Food Safety and Standards (Ayurveda Aahara) Regulations, 2022, Schedule B [See regulation 3(1)]

Plain English Summary:

Schedule B classifies Ayurveda Aahara into four categories: A, B, B1 and B2. The category determines the permitted formulation/process, whether safety data and prior product approval are required, and the requirements for health benefit and disease risk reduction claims.

The Exact Legal Text:

Schedule B

[See regulation 3 (1)]

Categories of Ayurveda Aahara and Regulatory Requirements

Category A

Description: Ayurveda Aahara prepared in accordance with the Authoritative Ayurveda Texts in Books listed in Schedule A.

Ingredients Permitted and Process: As provided in the Authoritative Ayurveda Texts in Books listed in Schedule A

Safety Data (prior approval of product): Not Required

Label Claim — Health Benefit: Prior approval of the Food Authority not required if claim is as per the Authoritative Ayurveda Texts in Books listed in Schedule A

Disease Risk Reduction: Evidence based prior approval of the Food Authority Required

Category B

Description: A new recipe of Ayurveda Aahara using ingredients listed in the Authoritative Ayurveda Texts in Books listed in Schedule A, along with other botanicals used in Ayurveda Dietetic Principles (viz. Rasa, Guna, Virya Vipaka, and Karma)

Ingredients Permitted and Process: Text Reference required for using new recipe or ingredient(s) provided in the Authoritative Ayurveda Books listed in Schedule A

Safety Data (prior approval of product): Required (Rationale, and Safety Data (including mutagenicity, carcinogenicity, and teratogenicity testing) of the new recipe or ingredient(s) or supporting published modern scientific evidence)

Label Claim — Health Benefit: Prior approval required based on the Authoritative Ayurveda Texts in Books listed in Schedule A

Disease Risk Reduction: Evidence based prior approval of the Food Authority Required

Category B1

Description: Ayurveda Aahara presented in a format different from that specified in the Authoritative Texts of Books listed in Schedule A

Ingredients Permitted and Process: As provided in the Authoritative Ayurveda Texts in Books listed in Schedule A (See explanatory note below)

Safety Data (prior approval of product): Not Required

Label Claim — Health Benefit: Rationale and Efficacy Data of new format including the target population, required for prior approval of the Food Authority

Disease Risk Reduction: Evidence based prior approval of the Food Authority required

Category B2

Description: Ayurveda Aahara intended to provide a health benefit, or as an adjuvant, to support a specific disease condition, or disorder specified/ not specified in the Authoritative Texts of Books listed in Schedule A. (Ayurveda Aahara for Specific Medical Purpose)

Ingredients Permitted and Process: As provided in the Authoritative Ayurveda Texts in Books listed in Schedule A

Safety Data (prior approval of product): Not Required

Label Claim — Health Benefit: Rationale and Efficacy Data for the specific medical purpose including the target population, required for prior approval of the Food Authority

Disease Risk Reduction: Evidence based prior approval of the Food Authority required

Note 1: The Food Authority may provide a list of Ayurveda Aahara covered under category A above from time to time. Addition or deletion or modification to this list shall be informed to the public by the Authority from time to time. Food Business Operator manufacturing such products may approach licensing Authority without need of any prior approval of the Authority. In case of Ayurveda Aahara products falling under category A, but not mentioned in the list, Food Business Operator shall request the Food Authority for inclusion by submitting relevant literature from Authoritative text listed under Schedule A books.

Note 2: The mere adoption of the Ayurveda Aahara in a format for suitability to offer it in a pre-packaged condition including concentration and drying for reconstitution prior to use may not constitute a change in format.

Keywords/Triggers:

Ayurveda Aahara Category A, Ayurveda Aahara Category B, Ayurveda Aahara B1, Ayurveda Aahara B2, new Ayurveda recipe, prior approval Ayurveda Aahara, safety data Ayurveda food, specific medical purpose